

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Echo Brown	Team: Team # 7	CCRB Case #: 200609687	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/24/2006 10:40 AM	Location of Incident: Corner of § 87(2)(b) and Broadway	18 Mo. SOL 1/24/2008	Precinct: 01		
Date/Time CV Reported Mon, 07/24/2006 3:19 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 07/24/2006 3:19 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Haut	24860	932777	001 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM George Liropoulos	08980	927088	001 PCT
2. POM Michael Safoschnik	10440	933312	001 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Haut	Abuse: PO William Haut stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM William Haut	Abuse: PO William Haut refused to provide his name and shield number to § 87(2)(b)	B . Substantiated

Synopsis

On July 24, 2006 at approximately 10:40 AM, PO William Haut stopped (**allegation A**) § 87(2)(b) § 87(2)(b)'s vehicle on the corner of § 87(2)(b) and § 87(2)(b) in Manhattan for failing to yield to pedestrians. § 87(2)(b) is a taxi cab driver and he was transporting § 87(2)(b) to work. After being stopped, § 87(2)(b) explained to PO Haut that § 87(2)(b) did yield to the pedestrians, and when PO Haut ignored § 87(2)(b) she asked him for his name and shield number, which he refused to provide (**allegation B**). PO Haut then issued § 87(2)(b) a summons § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) it is recommended that allegation A be **unsubstantiated**. § 87(2)(g)

§ 87(2)(b) allegation B, it is recommended that this allegation be **substantiated**.

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) who is a § 87(2)(b) white female weighing § 87(2)(b), made one statement in regards to this incident. § 87(2)(b) mailed a notarized written statement to the CCRB on August 15, 2006 [encl. 4A-C].

On July 24, 2006, § 87(2)(b) was picked up at her house located on § 87(2)(b) § 87(2)(b) in Manhattan by § 87(2)(b) of the § 87(2)(b). The investigation identified § 87(2)(b) as the driver of Car #§ 87(2) § 87(2)(b) was taking § 87(2)(b) to her office located at § 87(2) § 87(2)(b). While en route to § 87(2)(b)'s place of employment, § 87(2)(b) stopped at a traffic light on § 87(2)(b) at the intersection of § 87(2)(b) and § 87(2)(b). There was a patrol car in front of § 87(2)(b) which turned right onto § 87(2)(b) and parked a few feet away from the intersection of § 87(2)(b) and § 87(2)(b). Three officers exited the vehicle and one of the officers was leaning against the patrol car with his arms crossed. The investigation identified PO Michael Safoschnik, PO George Liropolous and PO William Haut as the three officers who exited the vehicle. PO Haut is the officer who was leaning against the patrol car. § 87(2)(b) described PO Haut as a young, slim, nice-looking, officer with brown boyish-cut hair. § 87(2)(b) described PO Safoschnik and PO Liropolous as white males.

While stopped at the traffic light, § 87(2)(b) saw approximately three pedestrians crossing the street. After the light turned green and after all the pedestrians crossed the street, § 87(2)(b) turned right onto § 87(2)(b). PO Haut motioned to § 87(2)(b) to pull over, and § 87(2)(b) complied. PO Haut approached the driver's side of § 87(2)(b)'s vehicle and asked him for his driver's license. § 87(2)(b) asked PO Haut what he had done. PO Haut informed § 87(2)(b) that he failed to yield. § 87(2)(b) told PO Haut that § 87(2)(b) turned right onto § 87(2)(b) after the light turned green and after all the pedestrians crossed. § 87(2)(b) stated that she was paying careful attention to § 87(2)(b)'s driving behavior because the same thing happened twice before to two previous drivers that she had. When PO Haut ignored § 87(2)(b) she asked him for his name and shield number, which he also ignored. When § 87(2)(b) asked PO Haut for his name and shield number he looked at her acknowledging her request, but ignored her. PO Haut issued § 87(2)(b) a summons for failing to yield to pedestrians.

Photo Array number 1 [encl. 5A-I]

Photo Array number 1, which included photos of PO William Haut, PO Michael Safoschnik and PO George Liropolous, was presented to § 87(2)(b) on September 21, 2006. § 87(2)(b) did not recognize any of the officers presented in the photo array as the subject officer. § 87(2)(b) did state, however, that officer #5, who was a filler, could be the subject officer because of his "slim face," but she was unsure.

Civilian Accounts

§ 87(2)(b)

§ 87(2)(b) who is a § 87(2)(b), § 87(2)(b) male, provided one statement in regards to this incident. § 87(2)(b) provided a formal statement during an interview at the CCRB on October 4, 2006 [encl. 7A-I].

On July 24, 2006, at approximately 10:45am, § 87(2)(b) who works for § 87(2)(b) and drives a black Lincoln Towncar, picked up § 87(2)(b) at § 87(2)(b) in Manhattan. § 87(2)(b) asked § 87(2)(b) to take her to § 87(2)(b). While en route to § 87(2)(b), § 87(2)(b) stopped at a red light on § 87(2)(b) behind a marked police car at the intersection of § 87(2)(b) and § 87(2)(b). The police car made a right turn onto § 87(2)(b) before the light turned green and parked on the corner of § 87(2)(b) and § 87(2)(b).

When § 87(2)(b) made a right turn onto § 87(2)(b) after the light turned green, he saw PO Haut, PO Liropoulos and PO Safoschnik, who were all identified during the investigation, standing outside the police car that had been in front of him on § 87(2)(b). PO Haut motioned with his hand for § 87(2)(b) to pull over. § 87(2)(b) complied and parked in front of the police car on § 87(2)(b). § 87(2)(b) described PO Haut as a 5ft tall white male, with a small moustache, brown hair, and a medium build. PO Haut approached the driver's side of § 87(2)(b)'s vehicle and asked for his driver's license and registration. Both of the driver's side windows on § 87(2)(b)'s vehicle were open. § 87(2)(b) asked PO Haut why he pulled him over. PO Haut again asked § 87(2)(b) for his driver's license and registration, which he provided without hesitation upon being asked a second time. After PO Haut asked § 87(2)(b) for his driver's license and registration for the second time, § 87(2)(b) who was sitting on the driver's side in the back seat, asked PO Haut why he stopped § 87(2)(b). When PO Haut did not respond to § 87(2)(b), she asked him for his name and shield number. PO Haut looked at § 87(2)(b) without responding and took § 87(2)(b)'s driver's license and registration back to his police car. PO Liropoulos and PO Safoschnik, who were both standing next to the police car throughout the incident, never interacted with § 87(2)(b) or § 87(2)(b) and were not involved in the incident. § 87(2)(b) described PO Liropoulos and PO Safoschnik as white males.

About two or three minutes later, PO Haut returned to the driver's side of § 87(2)(b)'s vehicle and issued him a summons for failing to yield pedestrians at the crosswalk on § 87(2)(b). After being issued the summons, § 87(2)(b) again asked PO Haut what he had done wrong. PO Haut told § 87(2)(b) that he had "failed to yield to the pedestrians." Although he did not say so to PO Haut, § 87(2)(b) stated that there were no pedestrians in the crosswalk when he turned onto § 87(2)(b). § 87(2)(b) again asked PO Haut what was wrong and when PO Haut did not respond, she again asked him for his name and shield number. Each time § 87(2)(b) asked PO Haut for his name and shield number he looked at her acknowledging her request, but ignored her. PO Haut then returned to his police car and stood next to PO Liropoulos and PO Safoschnik.

Photo Array number 2

Photo Array number 2, which included photos of PO William Haut, PO Michael Safoschnik and PO George Liropoulos, was presented to § 87(2)(b) on October 4, 2006 during his interview at the CCRB. § 87(2)(b) did not recognize any of the officers presented in the photo array as the subject officer. § 87(2)(b) did state, however, that officer #1, PO Safoschnik could be the subject officer, but he was unsure.

Results of Investigation

Identification of Officers Interviewed

PO Haut was identified from the summons that he wrote to § 87(2)(b) and as the officer who refused to provide his name and shield number to § 87(2)(b). PO Liropoulos and PO Safoschnik were identified by the roll call as the officers who worked with PO Haut on the date of incident.

PO Haut, PO Liropoulos and PO Safoschnik

Memo Book [encls. 9A-B, 12A-B, and 14A-B]

Neither officer had any relevant memo book entries in regards to this incident.

Summons [encl. 10]

Summons: § 87(2)(b)

CCRB Statements [encls. 11A-B, 13A-B, and 15A-B]

PO Haut was interviewed at the CCRB on October 6, 2006 and PO Liropoulos and PO Safoschnik were both interviewed at the CCRB on October 16, 2006. All three officers worked in the traffic safety division of the 1st Precinct on the date of incident.

None of the three officers recalled any details about the incident in question. During their interviews at the CCRB, each officer was shown pictures of § 87(2)(b) and § 87(2)(b) and they were also told several details about the incident in question, none of which helped them remember any details about the incident in question.

NYPD Documents

Roll Call [encl. 16A-B]

The 1st Precinct's roll call for tour 2 on July 24, 2006 lists PO Haut, PO Liropoulos and PO Safoschnik as the officers assigned to traffic safety.

Disposition of Summonses

§ 87(2)(b) is contesting the summons and has a hearing on § 87(2)(b)

§ 87(2)(b)

Civilian CCRB History

§ 87(2)(b) has one prior CCRB complaint, § 87(2)(b), § 87(2)(g)

Police Officer CCRB History

The Board has not substantiated any allegations against PO Haut [encl. 1].

Conclusions and Recommendations

Disputed/ Undisputed Facts

§ 87(2)(g)

Credibility

§ 87(2)(g)

Allegation A: PO William Haut stopped the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.

While PO Haut did not recall any details in regards to this incident, according to the summons issued to § 87(2)(b) PO Haut stopped § 87(2)(b) because he violated Section 4-03 of the New York City Department of Transportation Highway and Traffic Rules by failing to yield to pedestrians. Section 4-03 states: "Vehicular traffic, including vehicles turning right or left, shall yield the right of way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited [encl. A]."

§ 87(2)(b) stated that there were a few pedestrians crossing at the crosswalk on § 87(2)(b) but § 87(2)(b) only turned onto § 87(2)(b) after all of the pedestrians crossed the street. § 87(2)(b) stated that there were no pedestrians in the crosswalk or in his vicinity when he turned onto § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation A be **unsubstantiated**.

Allegation B: PO William Haut refused to provide his name and shield number to § 87(2)(b)
Patrol Guide procedure 203-09 [encl. B] states that an officer must provide his or her “rank, name, shield number and command to anyone who requests such information.” § 87(2)(b) and § 87(2)(b) both stated that § 87(2)(b) asked PO Haut for his name and shield number immediately after he stopped them, but PO Haut ignored her. § 87(2)(b) and § 87(2)(b) also both stated that PO Haut acknowledged § 87(2)(b)'s request by looking at her, but he still ignored her. § 87(2)(g)
§ 87(2)(b) asked PO Haut for his name and shield number because she believed § 87(2)(b) was being unjustly stopped due to racial profiling and she wanted to report the officer's actions, which she did soon after the incident.

§ 87(2)(g)

Therefore, it is recommended that allegation B be **substantiated**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: